

Geetha N vs Ramachandra on 24 January, 2024

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IN THE COURT OF THE IX ADDL.CHIEF METROPOLITAN
MAGISTRATE, AT BENGALURU.

Dated this the 24 th day of January 2024

Present : R.Mahesha,
B.A.L., LLB.,
IX Addl.C.M.M. Bengaluru.

JUDGMENT U/SEC.355 OF CR.P.C.

1.C.C.No.	12942/2016
2.Date of Offence	13/06/2015
3.Complainant	State by Jnanabharathi Police Station.
4.Accused	Ramachandra S/o.M Shivalinge Gowda Aged about 36 years, R/o.Papareddypalya, Bengaluru.

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5.Offences complained of	u/Sec.498(A) of IPC and Sec.3, 4 and 6 of Dowry Prohibition Act.
6.Plea	Accused pleaded not guilty.
7.Final Order	Accused is acquitted.
8.Date of Order	24/01/2024.

REASONS

The Police Inspector of Jnanabharathi Police Station, Bengaluru has filed charge sheet against the accused for the offences punishable U/Sec.498(A) of IPC and Sec.3, 4 and 6 of Dowry Prohibition Act.

2. The brief facts of the prosecution case is that, the first informant CW-1 Smt.Geetha.N got married to the accused on 30-05-2008 as per Hindu customs at Sri.Anjineya Bhavana Choultry, Banashankari 3rd Stage, Bengaluru,
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thereafter the marriage of CW.1 and accused person were resided within the limits of Jnanabharathi, Manganahalli Cross, Bengaluru. Further it is the case of the prosecution that the accused and complainant were lived happily for about two years and there after during the year 2011 they lived in CW.8's house situated at No.24/7, Papareddypalya, Gopalappa Layout, the accused person picked up quarrel with CW-1 and asking the shop of complainant's father situated near Dr.Ambedkar College in his favour and demanding money from her parents and also and subjected her to cruelty both by physically and mentally. Hence, CW.1 lodged the First Information to the Jnanabharathi Police Station. The Station House Officer registered a case in Cr.No.239/2015 for the offences punishable u/Sec. 498(A)

of IPC and Sec.3, 4 and 6 of Dowry Prohibition Act, and
submitted First Information Report to this Court. After
investigation, Sub-Inspector of Police, Jnanabharathi
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Police Station filed charge sheet for the offences punishable
u/Sec. 498(A) of IPC and Sec.3, 4 and 6 of Dowry
Prohibition Act against the accused. Hence, he has
committed the alleged offences.

3. The accused person is on bail. On receipt of charge
sheet, this court took the cognizance of the alleged offences
and furnished copy of the prosecution papers to the
accused. After hearing on charge, this Court has framed
charge against accused for the offences punishable U/Sec.
498(A) of IPC and Sec.3, 4 and 6 of Dowry Prohibition Act for
which accused pleaded not guilty and claimed to be tried.

4. The prosecution in order to prove its case has
examined 7 witnesses as PW.1 to PW.7 and got marked 6
documents as Ex.P.1 to Ex.P.6. Thereafter, the statement
of the accused u/Sec.313 of Cr.P.C. has been recorded. He
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has denied the incriminating circumstances appearing in
the prosecution evidence against him. The defence side
accused himself examined as DW.1 and documents got
marked as Ex.D.1 to Ex.D.4.

5. I have heard the arguments of both sides. Perused the entire oral evidence and documents placed on record.

6. The points that arise for my consideration are as under:

- (1) Whether the prosecution proves beyond reasonable doubt that the the first informant CW-1 Smt.Geetha.N got married to the accused on 30-05-2008 as per Hindu customs at Sri.Anjineya Bhavana Choultry, rd Banashankari 3 Stage, Bengaluru, thereafter the marriage of CW.1 and accused person were resided within the limits of Jnanabharathi, Manganahalli Cross, Bengaluru and thereafter the accused and complainant were lived happily for about two years and there after during the year 2011 they lived in CW.8's house situated at No.24/7, Papareddypalya, Gopalappa Layout, the accused person picked up quarrel with CW-1 and asking the shop of complainant's father situated
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near Dr.Ambedkar College in his favour and demanding money from her parents and also and subjected her to cruelty both by physically and mentally and thereby committed an offences punishable u/Sec.498(A) of IPC and Sec.3, 4 and 6 of Dowry Prohibition Act ?

(2) What order ?

7. My findings to the above points are as under:
Point No.1 : In the Negative,
Point No.2 : As per final order, for the following :
REASONS

8. Point No.1 :- It is well settled that in a criminal case the entire burden of proof rests upon the prosecution and the accused need to prove nothing. Suffice for the accused to create doubt about the case of the prosecution and the reliability of the witnesses for the prosecution.

9. The main allegation of the prosecution is that the first informant CW-1 Smt.Geetha.N got married to the accused on 30-05-2008 as per Hindu customs at Sri.Anjineya
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Bhavana Choultry, Banashankari 3rd Stage, Bengaluru, thereafter the marriage of CW.1 and accused person were resided within the limits of Jnanabharathi, Manganahalli Cross, Bengaluru. Further it is the case of the prosecution that the accused and complainant were lived happily for about two years and there after during the year 2011 they lived in CW.8's house situated at No.24/7, Papareddypalya, Gopalappa Layout, the accused person picked up quarrel with CW-1 and asking the shop of complainant's father situated near Dr.Ambedkar College in his favour and demanding money from her parents and also and subjected her to cruelty both by physically and mentally. As already stated supra, the prosecution has examined 7 witnesses as PW.1 to PW.7 and 6 documents got marked as Ex.P.1 to Ex.P.6.

10. The prosecution has been examined CW.1 as PW.1.
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She being informant of this case. She specifically testified before this Court that the accused is her husband, on 30/5/2008 the marriage of CW.1 with accused was solemnized in Sri.Anjeneya Bhavana Kalyana Mantapa,

aborted 3 months pregnancy at Ittumadu. Further she testified before this Court that she got pregnancy 2 nd time the accused used to say before her this child is not belongs to him and he suspected about her character. Further she testified before this Court that the parents of CW.1 assist to provide job to accused in Printing Press and also they provided Rs.1,15,000/- for the purpose of get lease at Manganahalli. After born of female child the accused and his family members never came and saw child of CW.1. Further she testified before this Court that after completion of 5 months to her child and she herself went to the house of the accused i.e. at Manganahalli cross, accused has not permitted to entered into his house and he assaulted her

through the owner of the said house. Therefore, she lodged this complaint against the accused. Further she testified before this Court that at the time of marriage they gave gold chain, ring and 250 grams of gold ornaments to accused

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and CW.1, the accused has cut right hand of CW. 1 through knife due to not provide site to the accused. She gave complaint against the accused in this regard. Further she testified before this Court that after lodge complaint against the accused the police officers came and conducted spot panchanama on 14/6/2016. She identified her signatures which is found in Ex.P.1 and 2 and she identified marriage invitation card and photos, 3 receipts and rental agreement which are marked as Ex.P.4 to Ex.P.6. She has been subjected cross-examination by the accused.

11. The prosecution has been examined CW.6 as PW.2. He testified before this Court that CW. 1 is his wife's sister daughter and he knows the accused No1 the marriage of CW.1 and accused solemnized on 30/5/2008 at Sri.Anjeneya temple, Banashankari Bengaluru. At the time

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of marriage they gave gold chain, bracelet, 2 rings and cash of Rs.1,50,000/- and the parents of CW.1 made expenses nearly Rs.8 to 10 Lakhs for the said marriage. Further he

testified before this Court that the parents of CW. 1 gave 250 grams of gold bangles, necklace, gold chain and other ornaments, after the marriage accused used to stay at Hosakerehalli in the house of his brother. After the marriage CW.1 and accused lead a marital life happily for a period of 1 ½ years, after that accused made separate house. Further he testified before this Court that accused always gave harassment to CW.1 to get shop from CW.1 in his name. The parents of CW.1 supported to get lease of house at Manganahalli cross, though accused started his ill treatment towards CW.1. CW.1 lodged complaint against the accused at Byadarahalli police station the police officers advised and compromised both and sent back.

Further he testified that after advise by police officers, the
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parents of CW.1 make house at Papareddypalya and accused and CW.1 stayed in the said house, again accused started to gave ill treatment to CW. 1 and demanded shop. Further he testified that the accused has cut right hand of complainant through blade, CW.1 admitted in the hospital and get treatment after that this complaint lodged against the accused. The police have enquired him and he gave statement before police officers. He identified the accused before this Court.

12. The prosecution has been examined CW.7 as PW.3. He testified before this Court that CW.1 is his wife's sister

daughter and he knows the accused No1 the marriage of
CW.1 and accused solemnized on 30/5/2008 at
Sri.Anjeneya temple, Banashankari Bengaluru. At the time
of marriage they gave gold chain, bracelet, 2 rings and cash
of Rs.1,50,000/- and the parents of CW.1 made expenses
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nearly Rs.8 to 10 Lakhs for the said marriage. Further he
testified before this Court that the parents of CW. 1 gave
250 grams of gold bangles, necklace, gold chain and other
ornaments, after the marriage accused used to stay at
Hosakerehalli in the house of his brother. After the
marriage CW.1 and accused lead a marital life happily for a
period of 1 $\frac{1}{2}$ years, after that accused made separate
house. Further he testified before this Court that accused
always gave harassment to CW.1 to get shop from CW.1 in
his name. The parents of CW.1 supported to get lease of
house at Manganahalli cross, though accused started his ill
treatment towards CW.1. CW.1 lodged complaint against
the accused at Byadarahalli police station the police
officers advised and compromised both and sent back.
Further he testified that after advise by police officers, the
parents of CW.1 make house at Papareddypalya and
accused and CW.1 stayed in the said house, again accused
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started to gave ill treatment to CW. 1 and demanded shop.
Further he testified that the accused has cut right hand of

complainant through blade, CW.1 admitted in the hospital and get treatment after that this complaint lodged against the accused. The police have enquired him and he gave statement before police officers. He identified the accused before this Court.

13. The prosecution has been examined CW.2 as PW.4, CW.3 as PW.5. Both being panch witnesses to Ex.P.2. They specifically testified before this Court that CW.2 is the brother of CW.1. Both have said before this Court that on 14/6/2015 the police officers came near the place of galata and verified the place and conducted spot panchanama in the presence of CW.1 and this witnesses. Further they testified before this Court that CW.1 lodged FIS against the accused for demanding dowry and gave physical and

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mental harassment to her. Therefore, the police officers have conducted Ex.P.2 at the place of incident both have identified their signatures i.e. Ex.P.2b and 2c. Both have been conducted cross-examination by the accused counsel.

14. The prosecution has been examined CW.4 as PW.6. He being father of complainant and retired CR police and CW.5 as PW.7 she being the mother of complainant. They consistently testified before this Court that complainant is their daughter accused is son-in-law. The marriage of CW.1 with accused solemnized on 30/5/2008 at

Sri.Anjeneya Bhavana Kalyana Mantapa, Banashankari,
Bengaluru as per their customs and in the presence of
elders and family friends. The said marriage performed and
incurred expenses of more than Rs.8 Lakhs. After the
marriage the accused took their daughter to his native
village i.e. Karadiya village, Mandya District and both have
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stayed in the said village for a period of 3 days. During
stay of accused the brother of the accused and his wife
stated that their daughter is not looks nice. Further they
testified before this Court that from the date of marriage of
their daughter the accused has been demanded to get
transfer shop in his name and accused always gave
physical and mental torture to their daughter, due to his
harassment their daughter got aborted 3 months
pregnancy at Ittumadu and when their daughter got
pregnancy 2nd time the accused used to say before their
daughter this child is not belongs to him and accused
suspected about their daughter's character. Further they
testified before this Court that the they assist to provide job
to accused in Printing Press and also they provided
Rs.1,15,000/- for the purpose of get lease at Manganahalli.
After born of female child the accused and his family
members never came and saw child of CW.1. Further they
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testified before this Court that after completion of 5 months

to their daughter child and their daughter went to the house of the accused i.e. at Manganahalli cross, accused has not permitted to entered into his house and he assaulted their daughter through the owner of the said house and their daughter lodged this complaint against the accused and they gave statements before the police. Both have been subjected cross-examination by the accused counsel.

15. The accused in order to disprove the case of prosecution and in order to prove his probable defence he himself orally examined before this Court as DW.1. He specifically deposed before this Court that after got marriage of complainant she herself gave ill-treatment to him, before marriage he had been working in Hotel, complainant and her father leave the earlier job and joined

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to another job salary of Rs.3,500/- per month. The intention of complainant and her parents the accused never visited to his native place and he never looked into his parents. The accused is having handicapped sister if we went to his native place to looks after to his parents and sister, CW.1 and his father gave life threat to him. Further he testified before this Court that when complainant and accused have stayed at house of Manganahalli, the father of complainant came and made galata in the said house, the owner of the said house advised to the father of the

16. On perusal of oral and documentary evidence it is relevant to note that some undisputed facts between parties. CW.1 and accused are wife and husband and there is no dispute regarding relationship and there is no dispute regarding marriage and they married as per Hindu customs and traditions as prevailed in their caste on 30/05/2008 in Sri.Anjineya Bhavana Choultry, Banashankari 3rd Stage, Bengaluru. The accused denied entire allegations made by CW.1 regarding receiving gold

ornaments cash from CW1 at the time of marriage. Further the accused is denied the ill treatment alleged by the CW.1. Further the accused clearly denied that on 13/12/2019 onwards they are not residing jointly as husband and wife. The accused himself filed M C NO.4882/2015 before Hon'ble I Addl.Pril.Family Court, Bengaluru for the purpose of seeking divorce from CW.1. After detailed enquiry and contest by both parties the said application was allowed and marriage of accused and complainant dissolved by decree of divorce dated 28/01/2022. This complaint lodged against the accused after divorce petition filed by the accused against the complainant. The accused and complainant have stayed at Manganahalli Cross and Papareddypalya in lease and rented houses at the time of alleged incident. So it is burden on the prosecution to prove the allegations made against the accused with cogent and valid evidence and 21 CC NO.12942/2016 beyond reasonable doubt. In order to prove the case of prosecution the prosecution examined PW.1 to PW.7 and got marked documents Ex.P.1 to Ex.P.6. It is the specific case of the complainant is that whey they were stayed in Manganahalli Cross, accused has been repeatedly made demand to get shop which is stood in the name of her father in his name. Otherwise, you will not live with him you may leave him. Further it is the case of the complainant that on 24/10/2010 she has been assaulted

by accused and lodged FIS against the accused before Tavarekere police station. Further it is the case of the complainant is that after negotiation taken place by family elders and well-wishers accused and complainant used to stay in one rented house Papareddypalya, near Suvarna Studio. The said house advance made by father of the complainant. During stay with the accused and accused regularly having liquor and forced to the complainant to get

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back shop and you sign on divorce papers. Further the case of the prosecution is that complainant has refused to sign on divorce papers the accused has cut her right hand through knife and she got twice abortions due to the ill-treatment and harassment given by the accused.

17. In order to bring home the guilt of the accused the complainant reiterated FIS contents in her chief-examination. It is elicited in her cross-examination that she does not know to read and write Kannada language Ex.P.1 wrote by police officers and she knows to sign in Kannada and English language. Ex.P.1 has been lodged against the accused after completion of 7 years from the marriage. Further it is elicited in her cross-examination that she is not intimated to her parents and brother-in-law regarding the accused has daily demanded dowry through whatsapp. Further it is confronted through Ex.D.1 i.e.

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evidence affidavit of CW.1 and cross-examination in MC NO.4882/2015. She clearly admitted that the accused and complainant have got divorced in MC NO.4882/2015 from I Addl.Family Court Bengaluru. Further she volunteers before this Court that she preferred appeal before Hon'ble High Court of Karnataka and challenged divorced order passed in MC NO.4882/2015 from I Addl.Family Court Bengaluru. Further it is admitted by complainant is that after lodging M C case against the complainant this complaint has been against the accused. Further she clearly admitted that she is not stated in Ex.P.1 regarding of RS.1,15,000/- handed over to the accused in her presence. Further she admitted that in dowry talks () accused brother and his wife and brother-in-laws I.e.one Dhananjaya and Nagaraj of complainant were participated in dowry talks i.e. (). Further it is confronted by accused through PW.1 in her cross-
24 CC NO.12942/2016 examination i.e. Ex.D.1 that on 13/1/2009 onwards she is not residing in the house of the accused. Further she volunteers that she went to maternity to her parents house. Further she admitted that she has not lodged any complaint against the accused for accused has been demanded to obtain her signatures and divorced papers. Further she admitted that in Ex.P.1 she is not stated complainant's family members have handed

over cash of Rs.1,50,000/- to one Siddalingegowda and his wife Smt.Sridevi. Further she admitted that in Ex.P.5 she is not mentioned names of complainant or his father's name. Further this Court meticulous appreciate the oral evidence of pw.2 and 3. They clearly admitted that there is no documents to show these witnesses were participated in dowry talks i.e. () before marriage. Further PW.2 and 3 have admitted that on the day of dowry talks CW.1's parents have gave Rs.1,50,000/- to accused

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as a dowry. Further it is elicited in their cross-examination that the accused and CW.1 were not present in the dowry talks i.e. (). Further this Court appreciate the oral evidence of pw.4 it appears that pw.4 admitted in his cross-examination that on 13/6/2015 he is not yet present in the house of CW.1 and he has not saw any incident directly. Further he is admitted that he has not produced any documents pertains to treatment taken by the complainant. Further this Court appreciate oral testimony of pw.5 it appears that he being panch witness to Ex.P.2 he clearly admitted that he visited to the house of CW.1 if any function or occasionally and he has not saw any galata taken place between accused and the complainant. Further he admitted that he is on duty on 13/6/2015. He signed on Ex.P.2 at the request of police officers. Further this Court meticulously appreciate the oral testimony of

Further PW.7 admitted in her cross-examination that she

Indian Kanoon - <http://indiankanoon.org/doc/52314450/>

demanded further dowry. Further she admitted that they have not made any agreement regarding giving of dowry to the accused. Further she admitted in her cross-examination that she produced all documents before this Court to show that they have gave dowry to the accused and she paid amount for rent in Papareddypalya. Further she admitted that the accused has physically and mentally ill-treated to the complainant in her presence. But she could not able to say actual date and time of gave ill-treatment to the complainant by the accused. Further it is elicited in her

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cross-examination that she has not gave any statement before police officers after the marriage accused and complainant have lead marital life with happy for a period of two years. Further she admitted that the police officers taken her statement as she deposed and the statement given before police officers are true and correct. Further she admitted in her cross-examination that she was not read the statement recorded by the police officers but elders said that to sign on the statement therefore she signed on statement u/Sec.161 of Cr.P.C. Further she admitted that she is not aware about facts wrote by police officers in her statement.

18. Further this Court meticulously verified the oral and documentary evidence placed by the accused it appears

that as admitted by PW.7 on 10/6/2015 the accused has

lodged complaint against his wife and father of the

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complainant. Further it is admitted by RW.1 in her cross-

examination that in M C NO.4882/2015 in Ex.D.1

13/12/2009

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. So from this admission of RW.1 / PW.1 / CW.1 it clearly indicates that the accused and the complainant have not lived in common roof as a husband and wife after 13/12/2009. The question of giving ill treatment and instigation by the accused does not found because they are not lived with as husband and wife at the time of the alleged time of incident. In order to prove the allegations of informant the prosecution did not cited or examined any neighbour witnesses of or an eye witnesses the said house in which the PW.1 and accused were stayed i.e. neighbour residents of Manganahalli Cross house and Papareddypalya house. Further CW.1 and other her brother-in-laws are

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said that there is no customary practice in their caste regarding giving dowry and cash of Rs.1,15,000/- has gave to the brother of the accused one Siddalingegowda and Sridevi. But said Siddalingegowda and Sridevi are not

made as accused by the complainant.

Further it is

admitted by PW.1 and 4 that she is not lodged any complaint against the accused for demand of dowry to police officers and she has not produced copy of complaint gave against the accused in Tavarekere police station. Further PW.1 clearly admission before this Court that she is not lodged any complaint against the accused when accused has cut her right hand through knife. Further she admitted before this Court that she is not lodged any complaint against the accused when accused has demanded her to get transfer shop of father of the complainant to his name and accused has demanded / forced her to sign on divorced papers as contended in her

chief-examination and Ex.P.1. Further PW.4 clearly admitted that he being own brother of pw.1 he never saw any incident directly and he has not produced any documents pertains to pw.1 treatment taken in hospital. Further it is relevant to note that pw.6 clearly admitted that there is a customary practice in their caste giving and taking dowry. He being retired C R police is not maintained any accounts pertains to marriage expenses of CW.1 and accused and he has not produced his I T details. Further It is relevant to note that pw.7 she being the mother of the complainant. She clearly admitted in her cross-examination that "

19. Further it is relevant to note that despite provided sufficient time the prosecution has failed to secured the presence of Cw.8 to 12. Therefore, this Court took the prayer of learned Sr.APP is rejected and CW.8 to 12 are dropped out vide order dated 10/2/2023. Cw.10 to 12 are being Medical officers and police officers their examination is very much necessary. Because many contradictions, omissions and improvements evidence has come out from the mouth of pw.1 to 7. Therefore, the examination of Investigation Officer is very much necessary in the instant case it is fatal to the case of the prosecution and the oral evidence of pw.1 to 7 creates serious doubt regarding the version of the prosecution.

20. Thus on perusal of evidence of prosecution it shows that except inconsistence and interested evidence of PW.1 to PW.7 absolutely there is nothing on record to prove that

the accused has ill treated and he demanded and received dowry from her as per case of prosecution. Further there is no explanation by police officers as well as CW.1 regarding FIS given by CW.1 at Tavarekere police station. Further absolutely no independent witnesses or negihbours of

rented house of accused and CW.1 and parents house of PW.1 are examined to prove the alleged ill-treatment and assault by accused person. Further, the evidence of PW.1 to PW.7 is inconsistency with averments of Ex.P.1 and the same does not help to the prosecution in any manner to prove the alleged offences on the part of the accused persons. For these reasons, the prosecution has failed to prove beyond reasonable doubt that the accused have committed the alleged acts of ill treatment, demand of dowry and assault and thereby they have committed the offences punishable u/Sec.498(A) of IPC and Sec.3, 4 and 6 of Dowry Prohibition Act. Therefore, the prosecution has

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utterly failed to prove the charges levelled against the accused beyond reasonable doubt. Accordingly, I answer Point No.1 in the negative.

21. Point No.2: For the aforesaid reasons, I proceed to pass the following:

ORDER

Acting under Section 248(1) of Cr.P.C., accused is hereby acquitted of the offences punishable u/Sec.498(A) of IPC and Sec.3, 4 and 6 of Dowry Prohibition Act.

The bail bond and surety bond executed by accused shall continue for a period of two months from the date of this order and thereafter same shall stand cancelled automatically. (Dictated to the stenographer directly on computer, corrected directly on computer and then pronounced by me in open court on this the 24th day of January 2024).

(R.Mahesha) IX Addl.Chief Metropolitan Magistrate, Bengaluru.

ANNEXURE List of witnesses examined on behalf of the prosecution:

PW.1:	Geetha
PW.2:	Dananjaya
PW.3:	Gopalagowda
PW.4:	Devaraju
PW.5:	Yogesh
PW.6:	Hemavathi.

List of documents marked on behalf of the prosecution:

Ex.P.1 :	Complaint
Ex.P.2 :	Panchanama

Ex.P.3 to 5: Invitation card, photo & receipts Ex.P.6 : Rent agreement.

List of material objects marked on behalf of the prosecution:

- NIL -

List of witnesses examined on behalf of the defence:

DW.1 : Ramachandra.

List of documents and materials marked on behalf of the defence:

Ex.D.1:	Copy of NCR
Ex.D.2:	Receipt
Ex.D.3:	Copy of complaint
Ex.D.4:	Copy of M C NO.4882/2015.

IX ADDL.C.M.M.
Bengaluru.

24/01/2024.

Judgment pronounced in the Open Court (Vide separate order) ORDER Acting under Section 248(1) of Cr.P.C., accused is hereby acquitted of the offences punishable u/Sec.498(A) of IPC and Sec.3, 4 and 6 of Dowry Prohibition Act.

The bail bond and surety bond executed by accused shall continue for a period of two months from the date of this order and thereafter same shall stands cancelled automatically.

IX ACMM, Bengaluru.